

REQUIRED NOTIFICATION AND CONSEQUENCES OF CRIMINAL CHARGES,
CONVICTIONS, AND PLEAS; AND DEPARTMENT OF SOCIAL SERVICES
INVESTIGATIONS OR DISPOSITIONS FOR EMPLOYEES

The Loudoun County School Board requires that employees notify the Superintendent or the Superintendent's Designee of any criminal charges, convictions, or pleas; and investigations or dispositions of child abuse and neglect. An employee may be dismissed from employment if they are determined to be unsuited for service by reason of criminal conviction or founded complaint of child abuse and neglect. The Superintendent's Designee for this policy is the Chief Human Resources Officer.

A. Employee Notification to Superintendent or Superintendent's Designee

1. When any employee has been charged by summons, warrant, indictment or information with the commission of any felony or misdemeanor, that employee shall notify the Superintendent or the Superintendent's Designee of the charge.

2. When any employee is the subject of a Department of Social Services (Child Protective Services (CPS), Adult Protective Services (APS), or equivalent organization) investigation into an allegation of child abuse or neglect, that employee shall notify the Superintendent or the Superintendent's Designee of the investigation.

3. When any employee receives a Department of Social Services (Child Protective Services (CPS), Adult Protective Services (APS), or equivalent organization) founded disposition of child abuse or neglect, that employee shall notify the Superintendent or the Superintendent's Designee of the disposition.

4. The notification to the Superintendent or the Superintendent's Designee shall be in writing and shall be accompanied by the name and address of the complainant, date of the alleged offense and a copy of the summons, warrant, indictment, information or other document served upon the employee notifying the employee of the charge. The written notification to the Superintendent or the Superintendent's Designee from the employee shall be provided to the Superintendent or the Superintendent's Designee, no later than the first working day following the service of the summons, warrant, indictment or information upon the employee, or as soon as practical in extenuating circumstances.

5. Failure of the employee to give the Superintendent or the Superintendent's Designee written notice, as set forth above, may be cause for disciplinary action up to and including dismissal from employment.

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B. Superintendent Notification to School Board. The Superintendent or the Superintendent's Designee shall inform the School Board of any notification of the felony arrest of a School Board employee which is provided by the employee or which is provided to the Superintendent by a state official or agency or a local law-enforcement agency pursuant to § 19.2-83.1 of the Code of Virginia, as amended.

C. Central Criminal Records Background Check. The Superintendent or the Superintendent's Designee may require any employee identified pursuant to this policy or pursuant to § 19.2-83.1 of the Code of Virginia, as amended, to submit to a Federal Bureau of Investigation (FBI) background check via the Central Criminal Records Exchange.

D. Criminal Convictions

1. The School Board will not employ any person who is convicted of a violent felony set forth in the definition of barrier crime in subsection A of § 19.2-392.02 of the Code of Virginia or any offense involving the sexual molestation, physical or sexual abuse, or rape of a child. If an employee is convicted of any such charge, such employee will be deemed unsuited for service and will be dismissed from employment.

2. If an employee is convicted of a class one misdemeanor or a crime of moral turpitude, such employee may be deemed unsuited for service and may be dismissed from employment.

E. Founded Complaints of Child Abuse and Neglect. If an employee is the subject of a founded case of child abuse or neglect, such employee will be deemed unsuited for service and will be dismissed from employment.

Adopted: 2/22/22

Legal Refs: Code of Virginia §§ [19.2-83.1](#); [22.1-296.1](#); [§22.1-296.2](#); [§22.1-296.4](#); [22.1-78](#)
Cross Refs: Policy [7550](#) Drug- and Alcohol-Free Workplace, Policy [7310](#) Staff Discipline, Policy [7540](#) Criminal Conviction or Founded Complaint of Child Abuse and Neglect of Applicants for Employment.